

Privacy Notice

Kinetic Markets, LLC | Futures Commission Merchant — NFA Member

Why?

Financial companies choose how they share your personal information. Federal law gives consumers the right to limit some but not all sharing. Federal law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully.

What We Collect

We collect personal information when you open an account, make transactions, or interact with us. This includes:

- **Information you provide:** - Name, date of birth, Social Security Number - Residential address, email, phone number - Employment and occupation information - Annual income and estimated net worth - Trading experience - Government-issued identification - Bank account and payment information - For entities: formation documents, beneficial ownership, authorized signers
- **Information from your transactions:** - Trade history, positions, and order activity - Account balances and margin status - Deposits, withdrawals, and payment history - Funding rate payments
- **Information from third parties:** - Identity verification results - Credit report information (if applicable) - Regulatory and sanctions screening results

How We Use Your Information

We use your information to: - Open and administer your account - Execute, clear, and settle transactions through Kalshi Klear LLC - Calculate and collect margin, variation margin, and funding payments - Comply with CFTC, NFA, and other regulatory requirements - Verify your identity (Bank Secrecy Act / USA PATRIOT Act) - Monitor for fraud, market manipulation, and suspicious activity - Send account statements, confirmations, and margin notices - Respond to legal process and regulatory inquiries

How We Share Your Information

We share your personal information as described below.

- **With our affiliates** (companies related to us by common ownership): - KalshiEx LLC (designated contract market / exchange) - Kalshi Klear LLC (derivatives clearing organization) - Kalshi Inc. (parent company)
- We share with affiliates for clearing, settlement, risk management, regulatory compliance, and fraud prevention. **You cannot limit this sharing.**
- **With nonaffiliated third parties:** - Banks and payment processors (to process deposits and withdrawals) - Identity verification providers (to verify your identity) - Regulatory authorities (CFTC, NFA, FinCEN — as required by law) - Law enforcement (when required by legal process)
- We do not sell your personal information. We do not share your personal information with nonaffiliated third parties for their marketing purposes.
- **You cannot limit sharing that is:** - Required by law or regulation - Necessary to process your transactions - Necessary to protect against fraud - Required for clearing and settlement through Kalshi Klear

Your Choices

You may:

Access your account information by logging into your account or contacting us - **Update** your information by contacting us at the address below - **Close** your account at any time — we will retain records as required by CFTC regulations (generally 5 years)

Why can't I limit all sharing?

We do not share your personal information except as required to comply with applicable law and to facilitate the processing of your transactions. We do not share your personal information with affiliates or nonaffiliated third parties for marketing purposes. For these reasons, no opt out is necessary.

How We Protect Your Information

We use administrative, technical, and physical safeguards to protect your personal information, including: - Encryption of data in transit and at rest - Access controls limiting employee access to customer information - Monitoring for unauthorized access - Secure disposal of records no longer needed

No system is completely secure. We cannot guarantee the absolute security of your information.

Retention

We retain your information for as long as your account is active and for a minimum of 5 years after account closure, as required by CFTC Regulation 1.31. We may retain information longer if required by law, regulation, or for legitimate business purposes such as dispute resolution.

Former Customers

If you close your account, we will continue to treat your information as described in this notice. We will not share former customer information with nonaffiliated third parties except as permitted or required by law.

Contact Us

For privacy questions, requests, or complaints:

Email: compliance@kalshiarc.com

Mail: Kinetic Markets, LLC, 416 West 13th Street, New York, NY 10014

Changes to This Notice

We may update this notice from time to time. We will notify you of material changes by posting the updated notice on our website or by other means as required by law.